IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 403
CP(CAA)3/ND/2026

IN THE MATTER OF:

Natures Bounty Wines And Allied Products Pvt Ltd And Shree Investment Pvt Ltd And Gyan Enterprises Pvt Ltd .... Applicant

Under Section 230-232 of the Companies Act, 2013

Order delivered on 21.04.2026

CORAM:
SHRI ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant	:	Mr. Sumit Garg, Mr. Harshit Singhal, Ms. Sanjeevani Shankari Shukla, and Ms. Ishita Jaiswal, Advocates for Petitioner Companies
For the Official Liquidator	:	Mr. Kartikeya Asthana, Ms. Urvashi Raj, Advocates for Official Liquidator
For the I.T. Department	:	Mr. Gaurav Gupta, SSC, Mr. Shivendra Singh, JSC, Mr. Yojit Pareek, JSC, Mr. Prassant Kumar Sharma, Adv.
For the RBI	:	Mr. Gajinder Kumar, Ms. Kiran Jai, Mr. Chandra Shekhar, Ms. Drishti & Ms. Somya, Advocates for RBI

ORDER

The Ld. Counsel for RBI could draw for attention to para-4 of the reply filed on behalf of RBI, where it has been stated that Gyan Enterprises Private Limited is registered as Non-Banking Financial Company (NBFC) under the provisions section 45-IA of the Reserve Bank of India Act,1934 (RBI Act). According to the stand taken by the RBI, the provisions of Chapter III-B of the RBI Act provides that the power of intervention available to RBI over NBFCs, is from the cradle to the grave. In terms of reply filed on behalf of the RBI, the NOC from RBI by any

NBFC involving a voluntary amalgamation should be taken for approaching any Court or Tribunal. Para 4 & 5 of the reply reads thus:-

"4. It is humbly submitted that Gyan Enterprises Private Limited is registered as Non-Banking Financial Company (NBFC) under the provisions section 45-IA of the Reserve Bank of India Act,1934 (**RBI Act**). It is submitted that the provisions of Chapter III-B of the RBI Act shows that the power of intervention available for the RBI over NBFCs, is from the cradle to the grave *[Nedumpilli Finance Company Limited v. State of Kerala and Ors. MANU/SC/0620/2022]*. It is submitted that RBI, in exercise of the powers conferred by Sections 45JA, 45K, 45L, 45M and 45MA of the RBI Act 1934, issued directions dated November 28, 2025 on Reserve Bank of India (Non-Banking Financial Companies – Voluntary Amalgamation) Directions, 2025, wherein Chapter II of the direction deals with Grant of No Objection Certificate (NOC)/ Approval by RBI and Clause 7 of Chapter II of the direction is reproduced as follows-

"7. For voluntary amalgamations involving an NBFC, scheme of amalgamation shall require approval of the Tribunal in terms of section 230 to 234 of the Companies Act, 2013. However, an NBFC shall seek No Objection Certificate (NOC)/ prior approval of RBI before approaching any court of Tribunal seeking orders for amalgamation as set out hereunder :-

(1)....

(2)....

(3) *Where a non- NBFC is proposed to be amalgamated with an NBFC, the NBFC shall seek NOC of RBI. However, the NBFC shall seek prior approval for such an amalgamation if it satisfies any one or more of the conditions i.e., (i) change in its (NBFCs) control as defined under clause (e) of sub-regulation (1) of Regulation 2 of Securities and Exchange Board of India (Substantial Acquisition of Shares and Takeovers) Regulations, 2011, (ii) change in its (NBFCs) shareholding consequent to the amalgamation which would result in change in shareholding of 26 percent or more of the*

paid up equity capital , (iii) any change in its (NBFCs) management which would result in change in more than 30 percent of the Directors, excluding independent directors.

A copy of the Voluntary Amalgamations direction dated November 28, 2025 is enclosed as **Annexure-A.**

5. It is submitted that RBI has not received required application in accordance with the provisions of aforesaid directions for NOC for amalgamation till date. It is also submitted that the application for NOC for amalgamation is mandatory even if there is no change in shareholding/control and management of the NBFC. It is humbly submitted that the Gyan Enterprise Private Limited/ NBFC has to comply the provisions of the aforesaid directions and to submit the required application(s) along with documents for examination and consideration of Reserve Bank. It is also respectfully submitted that unless and until the Gyan Enterprise Private Limited submits required application along with documents, RBI would not be able to examine the application. In view of the above, RBI registers objection to the scheme due to non-compliance with the provisions of aforesaid directions issued by RBI.

Along with the reply, the RBI has also enclosed Reserve Bank of India (Non-Banking Financial Companies-Voluntary Amalgamation) Directions-2025 dated 28.11.2025 issued vide No. RBI/DoR/2025-26/341 DOR.HOL.REC.No.260/16-13-100/2025-26.

As can be seen from Clause 7 of the directions, for voluntary amalgamations involving an NBFC, scheme of amalgamation shall require approval of the Tribunal in terms of Sections 230 to 234 of the Companies Act, 2013. However, the NBFC needs to seek No Objection Certificate (NOC)/prior approval of RBI before approaching any Court or Tribunal seeking orders for amalgamation. Though the clause has been reproduced in the reply filed on behalf of the RBI, but for the sake of veracity, we reproduce the clause as under:

Chapter II – Grant of No Objection Certificate (NOC) / Approval by RBI

7. For voluntary amalgamations involving an NBFC, scheme of amalgamation shall require approval of the Tribunal in terms of Sections 230 to 234 of the Companies Act, 2013. However, an NBFC shall seek No Objection Certificate (NOC) / prior approval of RBI before approaching any Court or Tribunal seeking orders for amalgamation as set out hereunder:

(1) Where an NBFC is proposed to be amalgamated with another NBFC, both the entities shall seek NOC of RBI and the amalgamated NBFC shall surrender its Certificate of Registration for cancellation post-amalgamation. The amalgamating NBFC shall also seek prior approval of RBI if such an amalgamation satisfies any one or all of the conditions i.e., (i) change in its control as defined under clause (e) of sub-regulation (1) of regulation 2 of Securities and Exchange Board of India (Substantial Acquisition of Shares and Takeovers) Regulations, 2011, (ii) change in shareholding of 26 percent or more of the paid up equity capital, (iii) change in its management which would result in change in more than 30 percent of the directors (excluding independent directors).

(2) Where an NBFC is proposed to be amalgamated with another entity (non-NBFC), the amalgamated NBFC shall seek prior approval of RBI and surrender its Certificate of Registration for cancellation post-amalgamation. The amalgamating entity shall approach RBI to seek registration as an NBFC, if it is likely to meet Principal Business Criteria post-amalgamation.

(3) Where a non-NBFC is proposed to be amalgamated with an NBFC, the NBFC shall seek NOC of RBI. However, the NBFC shall seek prior approval for such an amalgamation if it satisfies any one or more of the conditions i.e., (i) change in its (NBFC's) control as defined under clause (e) of sub-regulation (1) of Regulation 2 of Securities and Exchange Board of India (Substantial Acquisition of Shares and Takeovers) Regulations, 2011, (ii) change in its (NBFC's) shareholding consequent to the amalgamation which would result in change in shareholding of 26 percent or more of the paid up equity capital, (iii) any change in its (NBFC's) management which

would result in change in more than 30 percent of the directors, excluding independent directors.

Provided that the amalgamating NBFC shall continue to fulfil the Principal Business Criteria after amalgamation to be eligible to hold the Certificate of Registration as an NBFC as per the relevant guidelines / directions, as amended from time to time.

It is not the case of the Applicants that the company involved in the amalgamation is not an NBFC. It is also not the case that any NOC was procured from RBI before approaching this Tribunal by filing application under Section 230-232 of the Companies Act, 2013. The Counsel for the Applicants tried to explain that the Applicant Companies are group companies and the management of the NBFC is existing with the holding company and there would be no change in the circumstances/control of the NBFC. Such plea could be raised on behalf of the NBFC before RBI to seek no objection. It is not for this Tribunal to comment on the issue. What we need to check is whether the scheme of approval has nod from all the regulators. In the present case, apparently RBI has not given any no objection qua the scheme before the Applicants approached this Tribunal. In the wake, the application is **rejected** and the scheme is not approved.

Ld. Counsel for the Applicant submitted that the NBFC has already filed an application before RBI to seek no objection certificate. Such stand taken on behalf of Applicant vindicate the stand of the RBI that before filing the application under Section 230-232 before this Tribunal, no application had been moved before RBI to seek no objection certificate. Now, at this stage, if the RBI grant no objection certificate to the scheme, the Applicants can resort to the remedy as available to them in accordance with law. As is apparent from the directions contained as above, the no objection certificate need to be procured by a NBFC before filing application.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(ASHOK KUMAR BHARDWAJ)
MEMBER (JUDICIAL)

Mamta/Amisha